

BEFORE THE IOWA
BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF THE	)	
	)	
APPLICATION FOR LICENSURE	)	
	)	CONSENT AGREEMENT
OF RHONDA K. FISCHBECK,	)	
	)	
RESPONDENT.	)	

COME NOW the Iowa Board of Social Work Examiners (the Board) and Rhonda K. Fischbeck, M.S.W., (the Respondent) and enter into the following Consent Agreement for issuance of a license to practice social work in Iowa:

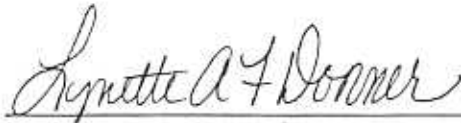
1. Respondent is an applicant for a license to practice social work in Iowa.
2. Respondent has completed the necessary education and examinations to qualify for licensure.
3. Respondent's application for licensure was initially denied on July 13, 1992, pursuant to Iowa Code § 147.4, based upon evidence of prior conduct that could be grounds for license discipline.
4. Respondent has presented evidence to the Board that indicates that she is currently able to practice ethically and professionally.
5. The Board agrees to issue a license to practice social work in Iowa, imposing a period of probation for the purpose of monitoring Respondent's continued progress. During the probationary period, Respondent shall not act as a supervisor of any mental health service provider.

Approved as to form:



BARBARA G. BARRETT
Dickinson, Throckmorton, Parker,
Mannheimer & Raife
1600 Hub Tower, 699 Walnut St.
Des Moines, Iowa 50309-3986

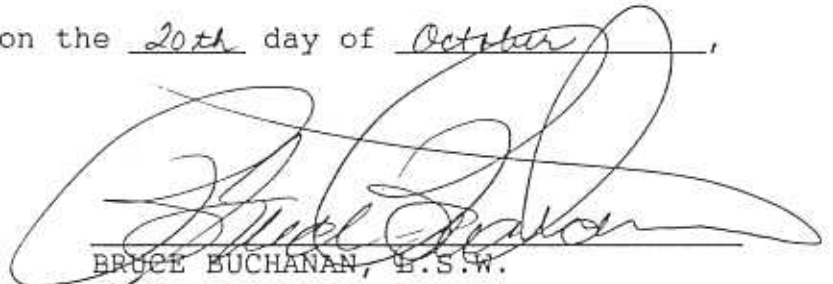
ATTORNEY FOR RESPONDENT



LYNETTE A.F. DONNER
Assistant Attorney General
Department of Justice
Hoover Building, 2nd Floor
Des Moines, Iowa 50319

ATTORNEY FOR THE PUBLIC
INTEREST

10. This Consent Agreement is accepted by the Iowa Board
of Social Work Examiners on the 20th day of October,
1992.



BRUCE BUCHANAN, B.S.W.

Chairperson

Iowa Board of Social Work Examiners

BEFORE THE IOWA
BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF THE
APPLICATION FOR LICENSURE
OF RHONDA K. FISCHBECK,
RESPONDENT.

NOTICE OF HEARING

NOW on the 24th day of July, 1992, the Iowa Board of Social Work Examiners, under the authority granted by § 17A.12, § 147.4, § 147.55, and § 258A.10 of the Iowa Code, and rules 645 Iowa Admin. code 280.200 through 280.217, and pursuant to notice of appeal filed on July 20, 1992, hereby notifies the Respondent that a hearing on the denial of your application for licensure will be held on the 29th day of September, 1992 at 9:00 a.m. in the Lucas State Office Building, 4th Floor Conference Room, Des Moines, Iowa.

You are hereby notified that his hearing will address the grounds for denial of licensure which were provided to you on the 13th day of July, 1992. (Copy attached).

You are also hereby notified that you may appear personally and be represented by counsel at your own expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear, the hearing will proceed and a decision will be made.

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address:

Lynette A.F. Donner
Assistant Attorney General
Hoover State Office Building
Des Moines, Iowa 50319
515/281-8760

IOWA BOARD OF SOCIAL WORK EXAMINERS

BY:

 ^{HdM}

BRUCE BUCHANAN, L.S.W., Chairperson



TERRY E. BRANSTAD, GOVERNOR

DEPARTMENT OF PUBLIC HEALTH
CHRISTOPHER G. ATCHISON, DIRECTOR

July 13, 1992

Rhonda K. Fischbeck
10 South Taylor Ave.
Mason City, IA 50401

RE: Notice of denial of Iowa social worker licensure

Dear Ms. Fischbeck:

On July 7, 1992, the Iowa Board of Social Work Examiners considered your application for social worker licensure. Following its review of your application, supporting documentation, and other pertinent material and information, the Board voted to deny your application.

The Board's action, taken pursuant to the provisions of Iowa Code § 147.4, was based upon evidence of conduct that would be grounds for revocation or suspension of a license to practice social work. Specifically, the Board considered evidence that you have exhibited professional incompetency; that you have engaged in unethical conduct or practice harmful or detrimental to the public; that you have exhibited mental or physical inability reasonably related to and adversely affecting your current ability to practice in a safe and competent manner; that you have exhibited negligence in the practice of the profession by reason of conduct, practice, or conditions which impair the ability to safely and skillfully practice the profession; and that you have exhibited conduct constituting prohibited acts pursuant to 645 Iowa Administrative code 280.211(7)(e).

Pursuant to the provisions of 645 Iowa Administrative Code 280.204, you may appeal the Board's denial of licensure by serving (by certified mail, return receipt requested) a notice of appeal and request for hearing on the Board's administrator not more than thirty days from the date of this notice.

Rhonda K. Fischbeck

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In addition or in the alternative, you may pursue negotiations toward a consent agreement which could provide a mechanism for licensure through the Board's attorney, Lynette Donner. Ms. Donner may be reached at the Office of the Attorney General, Second Floor, Hoover Building Des Moines, Iowa 50319, telephone (515) 281-8760.

Sincerely,



Harriett L. Miller
Board Administrator
Bureau of Professional Licensure

HLM/bjw

cc: Lynette Donner